SN

MENTIONING SLIP

Category of the case: CRM-M 18478 of 202 5

Title of the case: Ravinder vs State of Haryana

Name and signature of the counsel making mention: Namit Khurana Adv
P-2739/10
PH-223188

Reasons for urgency: "Anticipatory Bail is Prayed for"

Date and Time of the mentioning: 01/04/25 Time: 10:00 AM

Name of the Bench Secretary: S

Designation:

List on 3/4/25 subject to removal of objections if any, by the Registry
B.O.
2/4/2025

S. DRR

Court Secretary
Court No. 5

KESHAV VASHISHT
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H.C.J.D./C.—50

542 HC—Item 5—Govt. Press, U.T., Chd.

Application for which urgency is claimed should be submitted to the Deputy Registrar before 11 a.m. and will ordinarily be laid before the Judge appointed to dispose the applications of this class with his petitions on the day following that on which the application is presented.

The application may, however, if specifically requested and the reasons for the request stated, be submitted for orders on the day of presentation. In no case, however, will an application received after 11 a.m. be submitted for orders on the day of presentation.

IN THE HIGH COURT OF JUDICATURE FOR THE STATES OF PUNJAB AND HARYANA AT CHANDIGARH

18478
CRM-M 2025

To

The Addl. Registrar,
High Court, Chandigarh.
Title of case

Ravinder _____ Petitioner/Applicant

State of Haryana _____ Respondent.

Sir,

Will you kindly treat the accompanying petitions as an urgent one in accordance with the provision of Rule 9, Chapter 3-A, Rules and Order High Court, Volume V.

2. The grounds of urgency are— As

prayed for

Yours faithfully,

Jagmit Khurana
Advoacate.
P-2739/10
PH-223188

for Petitioner.

Dated 01/04/25

NB-695
39 Regd
Reports
02/04/25

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Gmail

Narendra Negi <negi.narendra76@gmail.com>

(no subject)

1 message

Narendra Negi <negi.narendra76@gmail.com> Wed, Apr 2, 2025 at 11:50 AM
To: aghrycrmphhc@gmail.com, Suprim Turan <turansuprim@gmail.com>

ravinder.pdf
1190K

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7189 05

IN THE HON'BLE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH.

CRM-M 18478 of 2025

Ravinder ...Petitioner

Versus

State of Haryana ...Respondent

INDEX

SR.NO.	PARTICULARS	DATED	PAGE NO.	COURT FEES
A	Synopsis	01.04.2025	1-2	—
1.	Memo of Parties	01.04.2025	3	3.00/-
2.	1st Petition U/s 482 BNSS. for anticipatory bail	01.04.2025	4-14	—
3.	Affidavit	01.04.2025	15	—
ANNEXURES:				
4.	P-1 (Copy of FIR)	05.02.2025	16-18	2.00/-
5.	P-2 (Bank Statement)	—	19	1.00/-
6.	P-3 (Legal Notice)	30.11.2024	20-25	4.00/-
7.	P-4(Reply)	09.12.2024	26-30	3.00/-
8.	P-5 (Copies of cases filed by the complainant)	—	31-40	7.00/-
9.	P-6 (Civil Suit)	25.03.2025	41-53	9.00/-
10.	P-7 (Order of Ld. ASJ)	28.03.2025	54-61	6.00/-
VERNACULARS:				

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11.	P-1 (Copy of FIR)	05.02.2025	62-66	—
12.	Power of Attorney + ID	01.04.2025	67-68	3.00/-

Total Court Fee Rs 38.00/- + 3.00/- (Vkar) = 41.00/-

Note: 1. Any such or similar bail filed by petitioner- No

2. No MP/MLA is party to the case.

Chandigarh

Dated: 01.04.2025

(Namit Khurana & Lalita Kashyap)
P-2739/2010 PH-5043/2022
PH- 223188
Advocates
Counsels for the petitioner

Dairy No 8579
Date 2/4/25
Page
Advocate General, Haryana

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IN THE HON'BLE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH.

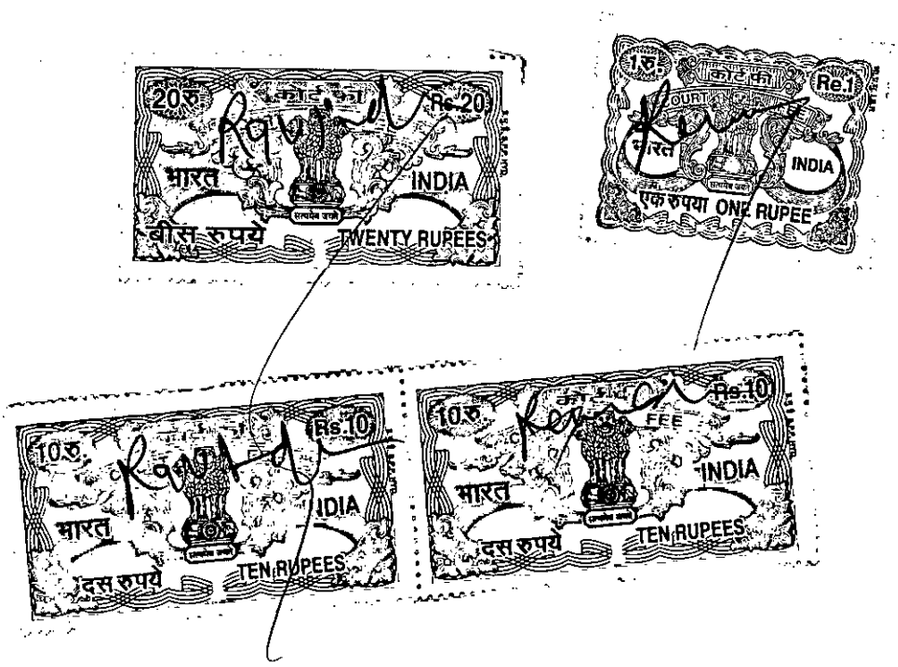
CRM-M 18478 of 2025

Ravinder ...Petitioner

Versus

State of Haryana ...Respondent

TOTAL COURT FEE =41.00/-



Chandigarh

Dated: 01.04.2025

(Namit Khurana & Lalita Kashyap)
Advocates
Counsels for the Petitioner

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(1)

IN THE HON'BLE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH

CRM-M 18478 of 2025

Ravinder ...Petitioner

Versus

State of Haryana ...Respondent

SYNOPSIS

1. This is the 1st Petition under section 482 BNNS with a prayer for grant of Anticipatory bail to the petitioner in case FIR No.83 dated 05.02.2025, under sections 420, 406 IPC registered at Police Station Samalkha, District Panipat.
2. The FIR (No. 83) was registered on 05.02.2025 at P.S. Samalkha, Panipat, based on the complaint of Lok Raj Bansal. He alleged that the petitioner took ₹7 lakhs from him in an agreement to sell land but later refused to execute the sale deed and resold the land to third parties.
3. The petitioner asserts that the agreement was merely a security arrangement for ₹90,000, which was later returned. The complainant's brother, a witness, also received ₹6 lakhs in cash on the same day.
4. After settling the matter with the complainant, the petitioner legally entered into a fresh agreement to sell with Satish and Pawan on 02.06.2023. However, they failed to execute the sale deed, leading to legal action by the petitioner.
5. The complainant sent a legal notice on 30.11.2024, almost 1.5 years after the alleged breach, raising doubts about his intentions.
6. The petitioner duly replied, clarifying that the amount was already returned, and the agreement was nullified.
7. The petitioner possesses video evidence proving the repayment to the complainant.
8. The alleged incident occurred on 23.03.2023, but the FIR was lodged on 05.02.2025, suggesting it is an afterthought to harass the petitioner.
9. The complainant has a history of filing multiple cases related to financial disputes, indicating a pattern of using legal proceedings for personal gain.

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10. The ingredients of Section 420 IPC are not met as there was no fraudulent intent or misrepresentation by the petitioner at the time of the agreement.

11. The petitioner has already filed a civil suit to declare the agreement null and void, which is pending before the Civil Judge (Senior Division), Samalkha.

12. The dispute is purely civil, and criminal proceedings are an abuse of judicial process, as repeatedly held by the Hon'ble Supreme Court.

13. The petitioner's anticipatory bail was declined by the Ld. ASJ, Panipat, on 28.03.2025, prompting the present petition.

Chandigarh
Dated: 01.04.2025

(Namit Khurana & Lalita Kashyap)
Advocates
Counsels for the Petitioner

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3

IN THE HON'BLE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH.

CRM-M-18478 of 2025

MEMO OF PARTIES

Ravinder aged 55 years, son of Sh. Ram Kumar, resident of village Garhi Tayagian, Tehsil Samalkha, District Panipat, Aadhar Card No. 2300 6129 4791, Mb. No. 9813436464.

(Petitioner has not been declared as Proclaimed offender)

...Petitioner

Versus

State of Haryana ...Respondent

Chandigarh
Dated: 01.04.2025

(Namit Khurana & Lalita Kashyap)
Advocates
Counsels for the Petitioner

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1st Petition under section 482 BNNS with a prayer for grant of Anticipatory bail to the petitioner in case FIR No.83 dated 05.02.2025, under sections 420, 406 IPC registered at Police Station Samalkha, District Panipat.

RESPECTFULLY SHOWETH:-

1. That the petitioner is a law abiding citizen who has been falsely implicated in the above noted case by the complainant with the connivance of police of P.S. Samalkha, District Panipat.
2. That the present case was registered on the complaint of complainant Lok Raj Bansal son of Banarasi Dass, who mentioned in his complaint that he is resident of Old Police Station Road, Samalkha and is a law abiding citizen. He alleged that Ravinder (Petitioner) son of Ram Kumar is owner of land measuring 1K-3M comprising in Khewat no.20317, Khatoni no.20417, Khasra no.175, Killa no.2/1 and wants to sell the said land. The complainant ready for purchasing the said land and gave Rs.7 lacs to the petitioner, in which Rs.6 lacs by way of cheque no.000134 of HDFC Bank, Branch Samalkha and Rs.1 lac in cash on 23.3.2023 in the presence of the witnesses. The rate of said land was Rs.3,000/- per sq. yard. When the complainant asked the petitioner for the registry of the said land then petitioner linger on the matter and thereafter on 30.11.2024, the complainant sent a legal notice through his

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counsel for the performance of execution of the sale deed in favour of the complainant. Thereafter, the complainant came to know that the petitioner after the agreement to sell with the complainant made a further agreement to sell with Satish son of Arjun Singh son of Himmat Singh and Pawan son of Umed son of Sawroop, resident of village Malakpur, Tehsil Rai, District Sonipat. When the complainant asked the petitioner regarding the second agreement to sell then the petitoner threatened the complainant that he will kill him and also stated the complainant that he deceived the complainant and received Rs.7 lacs and also told the complainant that do whatever he wants to do and the petitioner will sell the abovesaid land in near future to someone else. It is further alleged that the petitoner is very cuning type of person by this he grabbed Rs.7 lacs and also stated to the complainant that the complainant will not do anything with the petitoner, because he has very good relation with the police and moreover petitoner threatened the complainant that he will falsely implicate the complainant in arrest in false case by this petitioner deceived the complainant and disrespect the complainant and grabbed Rs.7 lacs by doing conspiracy with the complainant. It was requested that legal action be taken against the accused persons. On this complaint, formal FIR bearing no.83 under sections 406, 420 of IPC was registered in Police Station Samalkha, Panipat on 05.02.2025. The copy of the FIR is annexed herewith as **Annexure P-1**.

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3. That the complainant and the petitioner have the cordial relations therefore, they usually give and take money from each other. That on one occasion the complainant lends some amount to the petitioner however, in lieu of that money the petitioner entered into the alleged agreement. That the petitioner being owner of the land entered into alleged agreement to sell dated 23.03.2023 with complainant in lieu of Rs.90,000/- lend to petitioner by the complainant. The petitioner executed the alleged agreement to sell as security in which one witness is brother of the complainant i.e. Sohan Lal, who received Rs. 6,00,000/- in cash on the same day i.e. on dated 23.03.2023 from the petitioner which clears that the alleged agreement to sell in only as security of Rs.90,000/-. The petitioner has videography evidence regarding the returning of amount. After receiving back the amount, the complainant promised that when petitioner sell the abovesaid land to anyone and the petitioner received the amount and return the friendly loan of the complainant of Rs.90,000/- to the complainant then he will destroy the alleged agreement to sell. It is further submitted that the complainant had cleverly and falsely drafted the date of registry as 24.02.2024 instead of 24.05.2023. The complainant taken the benefit of innocence of the petitioner. It is further submitted that on before 24.05.2023, petitioner handed over the amount of Rs.90,000/- to the complainant in presence of Balraj son of Sh. Ramphal and on the same day the complainant

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promised that he will destroy the agreement dated 23.03.2023. The copy of bank statement is annexed as **Annexure P-2**.

4. That thereafter the alleged agreement to sell was mere a sham transaction between the complainant and the petitioner therefore, the petitioner executed an agreement to sell dated 02.06.2023 with Satish son of Sh. Arjun Singh and Pawan son of Sh. Umed Singh, in which it was mentioned that the said land is cleared from the all encumbrances, as the petitioner already paid the whole amount to the complainant and complainant promised that the alleged agreement to sell already cancelled. But the second party not execute the sale deed on the date fixed, but the petitioner was present in the Tehsildar Office and he sent the legal notice through his counsel for the execution of the sale deed, but Satish & Pawan never present for the execution of the sale deed.

5. That the legal notice sent by the complainant is after the delay of one and half year as the date fixed was in the agreement to sell is dated 24.05.2023. Moreover, it is pertinent to mention here that the date mentioned in the agreement to sell is dated 23.03.2023, if the date fixed for the execution of the sale deed is 24.02.2024 is correct, then the legal notice sent by the complainant party after the delay of seven months, which clearly shows that the complainant party just want to grab the land of the petitioner by doing collusion with the second party

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i.e. Satish & Pawan. Copies of legal notice is annexed as **Annexure P-3.**

6. That thereafter, the said Legal Notice was duly replied by the petitioner in which it is clearly mentioned that petitioner returned the amount with interest to the complainant on dated on the same date i.e on 23.03.2023. The copy of reply is annexed as **Annexure P-4**.

7. That the petitioner has not received even a single penny from the complainant as the amount received is already given back to the brother of the complainant on the same day i.e. on dated 23.03.2023, which is evident from the vediography also.

8. That there is a delay of about two years in lodging the present FIR. That as per the FIR the alleged incident occurred on 23.03.2023 whereas the present FIR was lodged on 05.02.2025 which shows that the FIR is a result of an after thought and lodged just to harass and humiliate the petitioner.

9. That the complainant is very clever and cunning person and the complainant is a very big financer as he filed 10 cases in the Sub- Division Samalkha for the cheque bounces and suit for recovery. The business of the complainant is to take the benefit of the innocence person and then filed the false cases against the innocent person and grabbed the amount and land from the innocent person. Copies of cases filed by the complainant are annexed as **Annexure P-5**.

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10. That Section 420 of IPC is not made out in this case as the complainant has failed to establish that the petitioner had fraudulent intent or made any material misrepresentation at the time of the agreement. Even if the version of the complainant is believe as it is then also at the time the agreement was executed, there was no intention by the petitioner to deceive or defraud the complainant.

11. That it is imperative to mention here that the petitioner has filed the civil suit for declaration to the effect that the agreement to sell dated 23.03.2023 alleged to be executed by the petitioner in favour of the complainant is illegal, null, void and misrepresentation committed by the complainant upon the petitioner and the same is not binding on the rights of the petitioner is liable to be declared as cancelled and for permanent injunction restraining the complainant forever from interfering in the peaceful possession of the petitioner over his land which is pending before the Ld. Civil Judge (Senior Division) Samalkha, Panipat. The copy of Civil Suit is annexed as **Annexure P-6.**

12. That it is pertinent to mention here that the present dispute is purely of civil Nature. The Hon'ble Supreme Court has repeatedly held that criminal las should not be used to settle purely civil disputes. The complainant had the option to pursue appropriate civil remedies. Initiating criminal proceedings in

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such circumstances is impermissible and amounts to misuse of the Judicial process.

13. That the petitioner apprehending his arrest at the hands of police, however, that the petitioner had applied for grant of anticipatory bail before the court of Ld. ASJ, Panipat but the prayer made by the petitioner had been declined vide order dated 28.03.2025 passed by the court of Ld. ASJ, Panipat. The true typed Copy of the order dated 28.03.2025 passed by the Ld. ASJ, Panipat is herewith annexed as **Annexure P-7.**

14. That it is humbly and respectfully submitted that in fact petitioner is actually victim in the present case. From bare perusal of entire FIR, no offence at all is made out. The complainant in connivance with the police got lodged the present FIR. Therefore, only vague and baseless allegations are made against the petitioner and nothing is to be recovered from the possession of the petitioner. As such his custodial interrogation is not required in any manner.

15. That it is humbly submitted that the petitioner is the victim of frame up in the blatant false case and has not committed any such offence as alleged in the FIR. The police are adamant to arrest the petitioner in the false case and not hearing the grievance of the petitioner.

16. That the Ld. Sessions Judge while declining the bail application has not considered the fact that the present FIR is an afterthought and to create pressure upon the petitioner, present

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FIR has been registered with ulterior motives. The complainant didn't show single piece of evidence that petitioner acted as per the allegations.

17. That the Ld. ASJ, Panipat had failed to take into consideration that complainant has leveled false allegations in the FIR and are quite vague, bundle of lies and beyond iota of any truth. It is necessary to submit here that no offence against present petitioner is made out in present case.

18. That the Ld. ASJ, Panipat has further failed to appreciate that the present FIR is an abuse of the process of law and has been filed only as coercive tactic to obtain some illegal benefit by way of extracting money from the Petitioner. The same is impermissible in law. In the present case, there is no allegation which showed that accused committed any willful act or omission. Moreover, the complainant has twist the actual facts and tried to misuse the law.

19. That even otherwise vague allegations have been leveled against Petitioner. In the present case, no offence of cheating is made out. The present FIR is an abuse of process of law. The allegations leveled against the petitioner are totally false and frivolous. The action of the police officials is highly unfair and unjustified.

20. That the FIR has been lodged with ulterior motives and has been filed with a mala fide intent. It is necessary to submit here that neither any alleged occurrence ever been occurred nor any

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of the essential ingredients of any of the offence mentioned in the FIR are made out.

21. That no recovery is to be effected from the petitioner and his custodial interrogation is not required as per the facts and circumstances of the present case. So, the whole approach of the Ld. ASJ, Panipat while declining the anticipatory bail is illegal and perverse.

22. That the petitioner has good reputation in the society. It is necessary to submit here that due to registration of present FIR against the petitioner, the petitioner got disturbed and now he is apprehended her arrest in the present FIR. The petitioner is permanent resident of above-mentioned address and having the deep roots in the Society. There is no apprehension of the petitioner being fleeing from justice.

23. That the petitioner undertakes not to leave the country without the prior permission of the Hon'ble Court.

24. That the petitioner undertakes not to extend any threat, promise and inducement to any person, who might be acquainted with the facts of the case directly or indirectly. The petitioner is involved in another FIR No. 370 dated 25.05.2017 u/s 120-B, 279, 406, 420, 467 and 506 registered at P.S Samalkha District Panipat in which the Hon'ble Court has stayed the proceedings of the trial court. It is further submitted that the petitioner has not been declared as proclaimed offender in any case,

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25. That the petitioner further undertakes to abide by all the terms and conditions which might have been imposed upon her by this Hon'ble Court while granting them the concession of anticipatory bail.

26. That no such or similar petition has earlier been filed by the petitioner in this Hon'ble Court or in the Hon'ble Supreme Court of India.

27. That except the application for anticipatory bail which had been dismissed by the Sessions Judge, vide order dated 28.03.2025, no such other application is pending before Ld. Sessions Court, Panipat.

In view of the above facts, it is, therefore, respectfully prayed that the instant petition may kindly be allowed and the petitioner be granted the concession of anticipatory bail in the subject FIR No.83 dated 05.02.2025, under sections 420, 406 IPC registered at Police Station Samalkha, District Panipat (Annexure P-1), in the interest of justice.

It is further prayed that during the pendency of the present petition for grant of anticipatory bail, the arrest of the petitioner may kindly be stayed, in the interest of justice.

It is still further prayed that the petitioner may kindly be exempted from filing the certified/true typed/more legible copies as well as more legible copies of Annexures in the interest of justice.

Note- Affidavit is attached.

Chandigarh

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Dated: 01.04.2025

(Namit Khurana & Lalita Kashyap)
Advocates

Counsels for the Petitioner

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IN THE HON'BLE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M 18478- of 2025

Ravinder ...Petitioner

Versus

State of Haryana ...Respondent

Affidavit of Ravinder aged 55 years, son of Sh. Ram Kumar, resident of village Garhi Tayagian, Tehsil Samalkha, District Panipat, Aadhar Card No. 2300 6129 4791.

I, the above named deponent do hereby solemnly affirm & declare as under:-

1. That the accompanying petition has been drafted by the counsel on the instructions of deponent and the contents thereof are true and correct and nothing material has been kept concealed therein.

2. That the petitioner has not filed any such or similar petition either before this Hon'ble Court or in the Hon'ble Supreme Court of India claiming the same relief as has been claimed in instant petition. The Adhaar card of deponent is attached herewith as identity proof of deponent.

Place: Chandigarh

Dated: 01.04.2025 13/20 Deponent

VERIFICATION:-

Verified that the contents of my above affidavit are true and correct to the best of my knowledge; no part of it is false and nothing has been concealed therein.

Place: Chandigarh

Dated: 01.04.2025 Deponent

ATTESTED

SHA... TRIKHA
NOT... Chandigarh
01/4/25

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Annexure P- 1

FIR No.0083 dated 05.02.2025,
Under Sections 406, 420 IPC,
Police Station Samalkha,
District Panipat.

12. First Information contents:

Contents of application No.06 *Dasti* Dated 02.01.25 are as under – To The S.H.O. Sahab, Police Station Samalkha. Subject:- Application for taking legal action against 1. Ravinder Kumar son of Ramkumar son of Shri Mukhtiar Singh, resident of village Garhi Tyagan, Tehsil Samalkha, District Panipat. Sir, The applicant prays that the applicant is a permanent resident of Samalkha and believes in law. 1. That the above accused told the applicant that he is the owner and occupant of 1 Kanal 3 Marla out of land Khewat No.20317, Khatauni No.20417, Khasra No.175 Kila No.2/1 and wants to sell his said land, which the applicant agreed to take and the applicant paid Rs.7 lakh, out of which Rs.6 lakh was received by cheque no.000134 HDFC Bank branch Samalkha and Rs.1 lakh in cash on date-23.03.2023 by the above accused from the applicant in the presence of witnesses and the deal of the above land was fixed at the rate of Rs.3 thousand

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per square yard. 2. That when the applicant kept talking to the above accused about getting the registration done, the above accused kept delaying and the applicant gave a legal notice to the above accused through his advocate on 30.11.2024 regarding getting the registration done in favor of the applicant, after which the applicant came to know that even after making an agreement with the applicant, the above accused have got another agreement done with Satish Kumar son of Shri Arjun Singh son of Shri Himmat Singh and Pawan Kumar son of Shri Umed Singh son of Shri Ramswaroop, residents of Milkpur, Tehsil Rai, District Sonipat. When the applicant talked to the accused about the said agreement, the accused got furious and started threatening to kill the applicant and started saying that he has cheated me of Rs.7 lakh and you do whatever you can and I will sell the said land somewhere else. 3.That the above accused is a cunning person who cheated me and swindled Rs.7 lakhs from me and openly says that you cannot do anything to me, I have a good reputation in the police and I will get you arrested in a false case or get a false case registered against you. 4.That the above accused have cheated me and betrayed my trust by swindling Rs.7 lakhs from me and all this has been done under a well-planned conspiracy. Therefore, it is requested to your goodself that after

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registering a case against the aforesaid accused, money of the applicant be got returned. Your kindness will be immense. Date-02.01.2025. Note: Copy of Agreement to Sell dated-23.03.2023 and 02.06.2023 is enclosed. SD LOKRAJ BANSAL Applicant Lok Raj Bansal son of Shri Banarasi Das, resident of Old Police Station Road, Samalkha. Mob.9254495969. At Police Station – On receipt of the application No.06-Dasti dated 02.01.25 and investigation report, finding commission of offence under Sections 406, 420 IPC, after registering FIR No.83 dated 05.02.2025, under Sections 406, 420 IPC in Police Station Samalkha, Panipat, computerized copies of the F.I.R. have been prepared. Copy of police file alongwith original application will be handed over to ASI Ajay 168, Police Post Haldana for taking further action. Remaining copies of the F.I.R. are being sent by post to the concerned officers. The First Information Report has been registered in the presence of SI Balwan Singh 539/RR.

True translated extract

(Advocate)

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Annexure - P-2

19

Account Number: 08970100007067 Name: RAVINDER KUMAR SO RAM KUMAR

Date	Particulars	Cheque No.	Debit	Credit	Balance
	BALANCE BROUGHT FORWARD:				2,159.67Cr
	FFD BALANCE:				0.00
01/01/2023	08970100007067:Int.Pd:01-10-2022 to 31-12-2022			56.00	2,215.67Cr
03/01/2023	AMC ATMCRD-Dec22toNov23-1922		177.00		2,038.67Cr
11/01/2023	SELF		1,500.00		538.67Cr
04/02/2023	APBS: IOCL LPG SUBSIDY			3.69	542.36Cr
06/03/2023	APBS: IOCL LPG SUBSIDY			3.69	546.05Cr
23/03/2023	RTGS/HDFC0001325/LOKRAJ BANSAL			6,00,000.00	6,00,546.05Cr
23/03/2023	SELF	82	6,00,000.00		546.05Cr
23/03/2023	SMS CHRG FOR: MAR QTR 2022-23		1.89		544.16Cr
03/04/2023	08970100007067:Int.Pd:01-01-2023 to 31-03-2023			5.00	549.16Cr
10/04/2023	APBS: IOCL LPG SUBSIDY			3.69	552.85Cr
08/06/2023	CHQ RETURN CHRGS		500.00		52.85Cr
08/06/2023	BY INST 75 : MICR OW CLG			8,00,000.00	8,00,052.85Cr
08/06/2023	BY INST 43 : MICR OW CLG			3,00,000.00	11,00,052.85Cr
08/06/2023	BY INST 44 : MICR OW CLG			5,00,000.00	16,00,052.85Cr
08/06/2023	RAJANDEEP SINGH	85	4,00,000.00		12,00,052.85Cr
12/06/2023	SELF	83	2,00,000.00		10,00,052.85Cr
12/06/2023	Charges for PORD/0915/PANKAJ		1.33		10,00,051.52Cr
12/06/2023	Charges for PORD/0915/PANKAJ		14.75		10,00,036.77Cr
12/06/2023	Charges for PORD/0915/PANKAJ		1.33		10,00,035.44Cr
12/06/2023	NEFT/SBIN0050099/PANKAJ	86	1,50,000.00		8,50,035.44Cr
12/06/2023	TRF TO SAVITRI		1,50,000.00		7,00,035.44Cr
12/06/2023	SUKHJINDERPAL SINGH	84	3,00,000.00		4,00,035.44Cr
16/06/2023	SELF	91	1,00,000.00		3,00,035.44Cr
17/06/2023	AJAY KUMAR SO HEM RAJ	88	2,00,000.00		1,00,035.44Cr
19/06/2023	Mr PARYAS PARYAS	90	50,000.00		50,035.44Cr
23/06/2023	APBS: IOCL LPG SUBSIDY			3.69	50,039.13Cr
27/06/2023	Mr PANKAJ	92	40,000.00		10,039.13Cr
30/06/2023	SELF	93	5,000.00		5,039.13Cr
	BALANCE CARRIED FORWARD:				5,039.13Cr

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ADVOCATE

Annexure P-3

20

MAHESH KAUSHIK, ADVOCATE, CHAMBER NO.440, LAWYERS CHAMBERS NEW JUDICIAL COMPLEX, G.T.ROAD, PANIPAT & CHAMBER NO.60, FIRST FLOOR, LAWYERS CHAMBERS COMPLEX, SUB DIVISIONAL COURT, SAMALKHA.

OFF: OLD GUR MANDI, SAMALKHA, DISTRICT PANIPAT.

MOBILE NO.98131-25300.

Dated:30.11.2024.

To

Sh.Ravinder Kumar son of Sh.Ram Kumar son of Sh.Mukhtiar Singh, r/o Vill. Garhi Tyagian, Tehsil Samalkha, District Panipat.

Subject:- Legal Notice for specific performance of agreement to sell dated 23.03.2023.

Respected Sir,

I have been authorized and instructed by my client Sh.Lok Raj Bansal son of Sh.Banarsi Dass son of Sh.Mange Ram, resident of Old Thana Road, Samalkha, District Panipat, to serve you with the following notice :-

1. **That** you addressee represented yourself to be the owner of land measuring 1 Kanal-03 Marlas comprising in Khewat No.2313, Khatoni No.2417, Rect.No.175, Killa No.2/1(1-3), situated within the area of village Patti Kaliyana, Tehsil Samalkha, vide Mutation bearing No.15009, along with all appurtenant thereto.

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2. **That** you addressee was intending to sell the above said property and as such, my client came into contact of you addressee and after negotiation, you addressee agreed to sell the above said property to my client at the rate of Rs.3,000/- per Sq. Yards and you addressee entered into a written agreement to sell the said property with my client for a total consideration of Rs.20,70,000/- and received an advance/earnest money of Rs.7,00,000/- i.e. vide Rs.6,00,000/- vide cheque No.000134 drawn on HDFC, Samalkjha Branch and Rs.1,00,000/- in cash, in the presence of witnesses from my client under the agreement to sell. As per your instructions, the agreement to sell dated 23.03.2023 was reduced into writing on 23.03.2023 and after that it was read over and explained to you addressee and you addressee put your signatures and thumb impressions on the same in token of its correctness after receiving the advance/earnest money of Rs.7,00,000/- through above said modes from my client in the presence of the witnesses. The witnesses and my client also signed the said agreement in your presence. The agreed terms and conditions of the agreement to sell dated 23.03.2023 are as under :-

(i) **That** the sale consideration of the property was agreed as Rs.20,70,000/-.

(ii) **That** an advance/earnest money of Rs.7,00,000/- i.e. Rs.6,00,000/- vide cheque No.000134 drawn on HDFC,

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Samalkjha Branch and Rs.1,00,000/- in cash, has been received by you addressee on 23.03.2023.

(iii) **That** the remaining amount of the sale consideration of Rs.13,70,000/- was agreed to be paid on 31.10.2021 at the time of execution and registration of the sale-deed and the date for the execution and registration of the sale-deed was fixed as 22.02.2024.

(iv) **That** it was also agreed between both the parties that in case you addressee fails to execute and get registered the sale-deed of the property in terms of the agreement dated 23.03.2023 in favour of my client or in favour of the person of his choice, in that event, my client would be entitled to get the sale-deed of the property executed and registered in his favour through the process of the court on depositing the balance sale consideration in the Treasury.

(v) **That** it was also agreed that if my client fails to get the sale-deed executed and registered on the date fixed, in that event, the earnest money paid by my client to you addressee shall stand forfeited and in case of litigation, in that event, the defaulting party would be liable to pay all the costs and damages to the other party.

(vi) **That** it was also agreed that if there is any loan or any other lien over the property in question, in that event,

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you addressee will be liable to clear the same before the date of execution and registration of the sale-deed.

(vii) That it was agreed that both the parties to the agreement and their legal heirs shall be bound by the agreement to sell dated 23.03.2023.

(viii) That it was also agreed that you addressee has not executed any agreement to sell, lease-deed, gift-deed etc. with any other person and also will not execute the same with any other person in future.

(ix) That it was also agreed that you addressee will be bound to execute and get the sale-deed of the property in question executed according to the Collector rate.

3. **That** on 22.02.2024, the date fixed for execution and registration of the sale-deed, my client contacted you addressee and requested you addressee to execute and get registered the sale-deed of the property in question in his favour on the expenses of my client after receiving the payment of remaining sale consideration, but you addressee showed in inability to do the same due to some family unavoidable circumstances and assured my client that you addressee would execute and get registered the sale-deed of the property in question in favour of my client on receipt of remaining sale consideration in near future after giving prior

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intimation. My client believing your assurance did not visit to the office of Sub Registrar, Samalkha on 22.02.2024.

4. **That** my client always remained willing and ready to perform his part of the agreement to sell dated 23.03.2023 and to get the sale-deed executed and registered in his favour on payment of balance sale consideration and is still ready and willing to perform his part of the agreement to sell dated 23.03.2023 and to get the sale-deed executed and registered in his favour on payment of balance sale consideration in terms of the agreement to sell dated 23.03.2023.

5. **That** after 22.02.2024, my client requested you addressee several times to get the sale-deed of the property in question executed and registered in his name on payment of balance sale consideration in terms of the agreement to sell dated 23.03.2023, but you addressee are prolonging the matter on one pretext or the other. Hence, this notice.

So, I am, therefore, serving you addressee on behalf of my client to take the notice that you addressee are called upon through this notice to execute and get registered the sale-deed of the property referred above in favour of my client in accordance with the terms and conditions of the agreement to sell dated 23.03.2023 on payment of balance sale consideration on the expenses of my client within 15 days from the date of receipt of this notice after giving prior intimation to my client regarding the date on which, you addressee will come present in

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the office of Sub Registrar, Panipat for execution and registration of the sale-deed in pursuance of agreement to sell dated 23.03.2023 **and at last on 18.12.2024**, my client will be present in the office of Sub Registrar, Samalkha, along with remaining sale consideration amount and amount for purchasing stamps and for expenses of execution and registration of the sale-deed and you addressee should have to come present in that office on the said date **i.e. 18.12.2024** for execution and registration of the sale-deed, failing which, my client shall be compelled to file a civil suit against you addressee for specific performance of the agreement to sell dated 23.03.2023 and in that case, you addressee shall also stand responsible for all the costs and expenses to be incurred by my client to this regard and the consequences thereof.

A copy of this notice is kept in my office for ready reference and for proof and further action.

Sincerely yours,

(Mahesh Kaushik)
Advocate.

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ADVOCATE

KESHAV VASHISHT
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Annexure P-4

26

Pankaj Chhoker

Advocate,

(M):9813436464

Chamber No.8, Lawyers complex,

Sub-Divisional Court, Samalkha, Panipat-132101 (Hry.)

Regd. A.D. Dated. 09/12/2024

To

1. Sh. Mahesh Kaushik Advocate Chamber no. 440, Lawyers Chambers New Judicial Complex, G.T. Road, Panipat and Chamber no. 60, first Floor, Lawyer's Chambers Complex, Sub-Divisional court, Samalkha, Distt. Panipat, M.no. 98131-25300

Your Client:

2. Sh. Lok Raj Bansal S/o Banarasi Dass S/o Sh. Mange Ram R/o Old Thana Road, Samalkha, Distt. Panipat

Sub:- Reply to your legal notice dated 30/11/2024

R/Sir,

Under instructions and on behalf of my client Ravinder Kumar S/o Sh. Ram Kumar S/o Sh. Mukhtiyar

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Singh R/o village Garhi Tyagyan, Tehsil Samalkha, Distt. Panipat, I the undersigned advocate hereby reply your above referred notice as under:-

Without prejudice to whatever is being submitted in parawise reply to your above referred notice, it is being made clear that my client vehemently denies each and every contents of your legal notice.

It is making clear to you that there is lot of star and material facts have been concealed and suppressed in your legal notice. It seems that your client did not disclose you true and material facts as such truth is far away from your hands. The true facts are as follows:-

1. That my client is absolute owner of land in question, but he has neither entered into any agreement to sell with your client, nor received any alleged amount in shape of earnest money from your client. Therefore my client is not entitled to bound with the alleged agreement to sell to execute and register the sale deed.

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2. That previously, your client and my clients had good friendly and cordial relations with each other. During that cordial time, my client availed a friendly loan of Rs. 90,000/- from your client, but your client obtained signature of my client on an agreement for security purposes. My client returned the above said borrowed amount with interest to your client on 02/06/2023.

3. That on 23/03/2023, your client asked my client to receive Rs. 6,00,000/- (Rs. six lacs only) through bank transaction and then withdraw from bank account and to return it in cash. Thereafter, your client transferred the above said amount of Rs. 6,00,000/- (Rs. six lacs only) in bank account of my client and then my client withdrew it from his bank account and returned it to brother of your client, who was sent by your client to take the payment. My client has proof of the incident while returning the payment of above said Rs. 6,00,000/- to your client's brother.

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4. That neither my client has to pay anything to your client, nor my client executed any alleged agreement to sell for selling his land in question in favour of your client, nor my client received any alleged amount, except the payment of Rs. 90,000/-, in shape of earnest money from your client. Therefore the question for agreeing on any alleged terms and conditions of the agreement to sell, does not arise at all. Your client fraudulently availed signature of my client on agreement to sell, whereas, it was assured by your client that the such document is only for security purpose, not for any other alleged purpose.

5. That now your client is not further entitled to get any sale deed registered of the above said land in his favour.

So, in view of the above said facts, by way of this reply, your client is called upon for not to create un-necessary litigation on behalf of present legal notice or alleged bogus and forged agreement to sell dated 23/03/2023 and spoil/tear or return

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the alleged agreement to sell to my client, within 7 days from the receipt of this reply cum legal notice. In case of failure of your client, my client will be compelled to proceed for filing criminal or civil proceedings against your client in the competent court of law upon sole risk and responsibility and your client.

Note: copy of this legal notice/reply is kept intact in my office for further proceedings and necessary actions.

Pankaj Chhoker

Advocate

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ADVOCATE

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Annexure P-5

31

CNR No: HRPPA10004032019 CIS No: NACT/85/2019

Lokraj Bansal son of Banarshi Dass VS Gyandeep Yadav etc.

Present: Complainant in person with Sh. Ajay Kohad, Advocate.

File put up before me being Duty Magistrate as Ld. Presiding Officer is on Child Care Leave. At this stage, complainant Sh. Lokraj Bansal has appeared and suffered a separate statement in writing that he has received the cheque amount from the accused and now nothing is due towards him. Hence, he does not want to proceed further with the present complaint and withdraws the same. He is duly identified by his counsel. Heard.

In view of the statement so made, present complaint is hereby dismissed as withdrawn. Accused stands acquitted and his surety stands discharged. File be consigned to the record-room after due compliance. File be sent back to the concerned court.

Date of Order: 2023-03-20
Preeti

(Ashok Kumar-IV)
D/JMIC, Samalkha
UID No.HR00392

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CNR No: HRPPA1-002407-2023 **CIS No: NACT/281/2023**

Shree Shyam Trading Co. Vs. Parmod

Present: Complainant in person with Sh. Aditya Goel, proxy counsel.

As per report of Ahlmad, Bailable warrants issued to accused Parmod received back unexecuted. Let, presence of accused Parmod be summoned through bailable warrants in the sum of Rs.5,000/- with one surety in the like amount for **14.05.2025**.

Date of Order: 06.02.2025
Seemant

(Pratibha Mahla)
Judicial Magistrate - Ist Class
UID NO . HR0516

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NACT-66-2018 **Lokraj Vs. Virender Kumar**

Present: Complainant in person with Sh. Ajay Kohad, Advocate.
Accused on bail with Sh. N.K. Vashista, Advocate.

File put up in Daily Lok Adalat. Today the case was fixed for evidence of complainant. At this stage, complainant submitted vide separately recorded statement that he has compromised the matter with accused and nothing remains is due towards accused. He further stated that he does not want to proceed further with present case and wants to withdraw the same. Heard and allowed. **Present case is hereby dismissed as withdrawn in view of aforesaid statement.** File be consigned to the record room after due compliance.

(Ashok Kumar-IV)
JMIC/CJ(JD), Samalkha,
UID: HR0392

Date of Order: 01.08.2023
Vipin, Stenographer Gr. II

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CNR no. HRPPA1000582018 NACT/ 15 / 2018

Lok Raj vs Satyawan.

Present: Complainant in person with Sh. Satpal Chhokar, Adv.

Arguments on the point of summoning of accused heard. The complainant has filed the instant complaint against the accused under section 138 of Negotiable Instrument Act on the ground that the accused in discharge of his existing liability, had issued cheque in question in favour of complainant. On presentation, the said cheque was dishonoured by the bank with the remarks "Funds Insufficient" vide memo. Thereafter, a legal notice was issued, but the accused has failed to make the payment of the cheque in question. Hence, this complaint.

In view of the evidence and documents, a prima facie case for the commission of offence punishable under section 138 of the Negotiable Instrument Act is made out against the accused. Let accused be summoned for the commission of offence punishable under section 138 of the Negotiable Instrument Act through Regd. AD as well as on filing of PF, copy of complaint and list of witnesses etc. within 15 days for **12.6.2018.** Dasti be given, if so desired.

(Gayatri)
ACJ(SD)/SDJM, Samalkha,
UID : HR0316

Date of order : 10.4.2018
Name of Steno: Sukanta Goswami
Next date: 12.6.2018
Purpose:-

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35

NACT-189-2017 Lokraj Bansal Vs. Ranbir Singh

Present: Complainant in person with Sh. Ajay Kohad, Advocate.
Accused Ranbir on bail with Sh. Raj Singh Rawal, Advocate.

File put up in Daily Lok Adalat. Today the case was fixed for recording the statement of accused under Section 313 Cr.P.C. At this stage, learned counsel for complainant submitted vide separately recorded statement that he does not want to proceed further with present case as compromise has been effected with accused and wants to withdraw the same. Heard and allowed. **Present case is hereby dismissed as withdrawn in view of aforesaid statement.** Accused Ranbir is hereby set free in the present case.

Surety Ishwar of accused Ranbir is hereby discharged in the given case. Intimation be sent to concerned quarter to remove the red ink entry made against property of **surety Ishwar son of Gaini Ram, R/o village Naultha, Tehsil Israna, Panipat**. File be consigned to the record room after due compliance.

(Ashok Kumar-IV)
JMIC, Samalkha,
UID: HR0392

Date of Order: 05.09.2023
Vipin, Stenographer Gr.II

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CNR No: HRPPA10004022019 CIS No: NACT/84/2019

Lokraj Bansal son of Banarshi Dass VS Manoj Kumar Pandey son of Rajinder Kumar Pandey etc.

Present: Complainant represented by Sh. Vikrant, Advocate.
Accused Manoj Kumar Pandey absent.

Today the case is fixed for presence of accused after affixation of proclamation. Proclamation was duly executed in compliance of Order was made on 29.10.2024. Specified time of 30 days from the date of publishing said proclamation has already expired. Accused has not come present. Waited sufficiently. It is already 03:30 PM. No further wait is justified. **Hence, accused Manoj Kumar Pandey is hereby declared proclaimed person**. Intimation in this regard be sent to the concerned SHO for initiating proceeding under Section 209 of BNSS and the name of accused be entered in the register of proclaimed person. Complainant has suffered a statement to the effect that he does not have any list of property of the accused. He is at liberty to file list of property of accused as and when he came to know about it.

Hence, file be consigned to the record room after due compliance. Concerned Ahlmad is directed to give a red ink note on the file cover that case file is not to be destroyed and be put up again as and when accused himself surrenders before the court or arrested and produced by the police.

Date of Order: 23.12.2024
Seemant

(Sanjay)
ACJ(SD)-cum-SDJM, Samalkha
UID NO . HR0391

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CNR No: HRPPA00006052022 CIS No: CS/512/2022

Lokraj Bansal VS. M/s Sanduriya Communication etc.

Present: Sh. Mahesh Kaushik, Advocate for the plaintiff.

File put up before me in pre lok adalat. Ld. Counsel for plaintiff appeared before this court and suffered a statement that as per the instructions received from his client, he does not want to proceed further with the present suit and withdraws the same since compromise has been effected between the parties.

In view of the statement made by ld. Counsel for plaintiff, the present suit is hereby dismissed as withdrawn.

Date of Order: 2024-02-15
Sukanta II

(Ms. Jogindri)
Presiding Officer,
Pre Lok Adalat, Samalkha, UID no.
HR00328

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NACT-202-2017 Lokraj Bansal Vs. Ranbir Singh

Present: Complainant in person with Sh. Ajay Kohad, Advocate.
Accused Ranbir on bail with Sh. Raj Singh Rawal, Advocate.

File put up in Daily Lok Adalat. Today the case was fixed for recording the statement of accused under Section 313 Cr.P.C. At this stage, learned counsel for complainant submitted vide separately recorded statement that he does not want to proceed further with present case as compromise has been effected with accused and wants to withdraw the same. Heard and allowed. **Present case is hereby dismissed as withdrawn in view of aforesaid statement.** Accused Ranbir is hereby set free in the present case.

Surety Sunder of accused Ranbir is hereby discharged in the given case. Intimation be sent to concerned quarter to remove the red ink entry made against property of **surety Sunder son of Ram Singh, R/o Wazirpur Titana, Panipat**. File be consigned to the record room after due compliance.

(Ashok Kumar-IV)
JMIC, Samalkha,
UID: HR0392

Date of Order: 05.09.2023
Vipin, Stenographer Gr.II

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CNR No: HRPPA00006052022 CIS No: CS/512/2022

Lokraj Bansal VS. M/s Sanduriya Communication etc.

Present: Sh. Mahesh Kaushik, Advocate for the plaintiff.

File put up before me in pre lok adalat. Ld. Counsel for plaintiff appeared before this court and suffered a statement that as per the instructions received from his client, he does not want to proceed further with the present suit and withdraws the same since compromise has been effected between the parties.

In view of the statement made by ld. Counsel for plaintiff, the present suit is hereby dismissed as withdrawn.

Date of Order: 2024-02-15
Sukanta *II*

(Ms. Jogindri)
Presiding Officer,
Pre Lok Adalat, Samalkha, UID no.
HR00328

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CNR No: HRPPA00007602022 CIS No: CS/639/2022

Manita VS Ramesh Kumar etc.

Present: Sh. Sumit Singh, counsel for the plaintiff.
Sh. Dayanand Panwar, counsel for the defendants no. 1 to 3.
Sh. Saurabh Aneja, counsel for the defendant no. 4.

PW-1 Lokraj Bansal recalled for his cross-examination. He is cross-examined today. No other evidence of plaintiff is present. Adjournment requested. Heard. Allowed. Now, the case stands adjourned to **20.02.2025,** for evidence of plaintiff, subject to last opportunity.

Date of Order: 17.12.2024
Seemant

(Sanjay)
ACJ(SD)-cum-SDJM
UID NO . HR0391/Samalkha

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ADVOCATE

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Annexure P-6

41

IN THE COURT OF LD.CIVIL JUDGE (SENIOR DIVISION)

SAMALKHA, PANIPAT

Ravinder Kumar (age 55 years) Son of Sh.Ram Kumar Son of Sh.Mukhtiar Singh, Resident of Village Garhi Tyagian, Tehsil Samalkha, Distt. Panipat.

UID No.2300 6129 4791 (M) _____

__Plaintiff

VERSUS

Lok Raj Bansal Son of Sh.Banarsi Dass Son of Sh.Mange Ram, Resident of Old Thana Road, Samalkha, Distt. Panipat.

__Defendant

SUIT FOR DECLARATION to the effect that the agreement to sell dated 23.03.2023 alleged to be executed by plaintiff in favour of the defendant is illegal, null, void, against law and facts and without any rights an act of fraud, forgery, misrepresentation committed by the defendant upon the plaintiff in collusion with the witness and the same is not binding on the rights of the plaintiff and is liable to be declared as cancelled with **PERMANENT INJUNCTION** restraining the defendant forever from interfering in the peaceful possession of the plaintiff over the land measuring 696 Sq.yds which is in

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Khewat No.2313, Khasra No.175//2/1(1-3), situated at G.T. Road, Sant Nirankari Mandal, village Patti Kalyana, Tehsil Samalkha, Distt. Panipat.

R/Sir,

The plaintiff submits as under:-

1- That the plaintiff is the permanent resident of Village Garhi Tyagian, Tehsil Samalkha, Distt. Panipat and law abiding citizen of India and filed the present suit before the Hon'ble Court to protect his legal rights.

2- That the plaintiff being owner in possession of land measuring 696 Sq.yds which is in Khewat No.2313, Khasra No.175//2/1(1-3), situated at G.T. Road, Sant Nirankari Mandal, village Patti Kalyana, Tehsil Samalkha, Distt. Panipat vide sale deed Vasika No.1519 dated 13.07.2022 and mutation No.15009 entered into agreement to sell dated 23.03.2023 with defendant at the rate of Rs.3,000/- per Sq.yds. As per the agreement to sell defendant had agreed to pay Rs.7,00,000/- to the plaintiff, the defendant handed over the

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cheque No.000134 of Rs.6,00,000/- and Rs.1,00,000/- in cash was handed over to the plaintiff. It is pertinent to mention here that the agreement to sell was executed as a security amount of Rs.90,000/- as a friendly loan taken some months before this agreement to sell then the defendant asked the plaintiff for putting some valuable things as security then plaintiff executed alleged agreement to sell as security in which one witness is brother of the defendant i.e. Sohan Lal, who received Rs.6,00,000/- in cash on the same day i.e. 23.03.2023 from the plaintiff which clears that the alleged agreement to sell is only as a security of Rs.90,000/-. It is pertinent to mention here that the amount mentioned in the agreement to sell sent to plaintiff is as a game plan of the defendant to grab the property of the plaintiff which is actually received by defendant on the same day, to prove this fact, the plaintiff has videography evidence regarding this. After receiving back the amount, the defendant promised that when plaintiff sell the abovesaid land to

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anyone and the plaintiff received the amount and return the friendly loan of the defendant of Rs.90,000/- to the defendant then he will destroy the alleged agreement to sell.

3- That in this regard, the defendant succeed in obtaining the agreement to sell dated 23.03.2023 from the plaintiff by committing breach of trust with intends to induce the plaintiff. The defendant has do so with malafide and ulterior motive with a wrongful cause to the plaintiff and to get wrongful gain to him, besides this, defendant had cleverly drafted the date of registry as 24.02.2024 instead of 24.05.2023. The defendant taken the benefit of innocence of the plaintiff.

4- That the plaintiff has not received even a single penny from the defendant as the amount received is already given back to the defendant on the same day, as the agreement to sell as a security and thus the agreement to sell dated 23.03.2023 has no legal value in the eyes of law and is illegal, null, void, against law, and facts and in no way

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binding on the rights of the plaintiff in any manner.

5- That on before the date fixed for the registered sale deed and the final payment is 24.05.2023 between both the parties, but defendant cleverly taken the advantage of the innocent plaintiff to change the date from 24.05.2023 to 24.02.2024. On before 24.05.2023, plaintiff handed over the amount of Rs.90,000/- to the defendant in presence of Balraj Son of Sh.Ramphal and on the same day the defendant promised that the defendant will destroy the agreement dated 23.03.2023 and it is already cancelled in the eyes of law as the defendant already received the amount of Rs.90,000/- from the plaintiff. The plaintiff has cordial and friendly relations with the defendant, so he admit the request of the defendant by doing faith on the defendant that the defendant will destroy the alleged agreement to sell, which is as valuable security of Rs.90,000/- which is already given back.

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6- That after the request and promise made by the defendant that the defendant will destroy the agreement to sell dated 23.03.2023 then plaintiff executed an agreement to sell dated 02.06.2023 with Satish son of Sh.Arjun Singh and Pawan son of Sh.Umed Singh, Resident of village Mirakpur, Tehsil Rai, Distt. Sonipat, in which it was mentioned that the said land is cleared from the all encumbrances, because the plaintiff already paid the whole amount to the defendant and defendant promised that the alleged agreement to sell already cancelled. Moreover, it is pertinent to mention here that before entering into agreement to sell dated 02.06.2023, the date of execution of alleged agreement dated 23.03.2023 is already gone, which is fixed as 24.05.2023 between the plaintiff and defendant. After that the agreement to sell executed on 02.06.2023 the date fixed for execution of sale deed is 05.09.2023 and then my client contacted the parties in the said agreement for the execution, but parties in the said agreement not executed the sale deed and the

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plaintiff present in the Tehsildar Office Samalkha for execution of the sale deed and made entry and appearance in the office of Tehsildar Samalkha o 05.09.2023, then plaintiff served the legal notice to the party Satish and Pawan through his counsel Sh.Dayanand Panwar and give time of 15 days for the execution of the sale deed, but Satish & Pawan did not come present for the execution of the sale deed in their favour on 09.10.2023, then again the plaintiff made appear in the Tehsildar Office Samalkha on 09.10.2023 and marking his presence.

7- That the plaintiff informed Satish & Pawan Parties in the agreement dated 02.06.2023 that the agreement to sell was cancelled as they did not perform their part and conditions mentioned in the agreement to sell.

8- That thereafter everything is going smoothly and plaintiff is enjoying the peaceful possession of the abovesaid land, but plaintiff shocked when he received a legal notice dated 30.11.2024 through Advocate Mahesh Kaushik from the side of defendant that for the execution of agreement to sell dated

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23.03.2023 which is already cancelled when the plaintiff paid the amount of Rs.90,000/- to the defendant in the presence of the witness namely Balraj and defendant promised that alleged agreement to sell was cancelled. Then plaintiff sent the reply on dated 09.12.2024 of the legal notice through his counsel and stated that the said agreement to sell dated 23.03.2023 is for the security of Rs.90,000/- which is already given back to the defendant.

9- That the contents mentioned in the legal notice sent by the defendant are false and frivolous and defendant never contacted the plaintiff for the execution of the sale deed vide alleged agreement to sell dated 23.03.2023 and in fact the actual date agreed between the parties on 24.05.2023 not the 24.02.2024. Moreover, it is wrongly mentioned in the legal notice sent by the defendant that remaining amount Rs.13,70,000/- was agreed to be paid on 31.10.2021, but it is clear from the alleged agreement to sell dated 23.03.2023 that alleged agreement to sell was executed on

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23.03.2023, so how can the defendant paid the amount of Rs.13,70,000/- on 31.10.2021. This shows that the story in the legal notice of the defendant is false and frivolous and just to grab the land of the plaintiff, because the value of the land of the plaintiff is increasing day by day.

10- That in the month of January 2025, the plaintiff called by the police of P.S. Samalkha then the plaintiff shocked to know that the defendant by doing collusion with abovesaid Satish & Pawan parties in the agreement to sell dated 02.06.2023 filed a false complaint against the plaintiff that the plaintiff deceive the defendant by selling the abovesaid land to Satish & Pawan before completing the time of execution of the sale deed of the already cancelled agreement to sell dated 23.03.2023, in which wrong date by deceiving the plaintiff was mentioned by the defendant of executing the sale deed as 24.02.2024 instead of 24.05.2023 in which date plaintiff repay the amount of Rs.90,000/- to the defendant.

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11- That after reply of legal notice and the defendant filed the complaint in the police then the plaintiff contacted the defendant that in presence of the witnesses Ram Kumar Son of Sh.Tek Chand, Narender Son of Sh.Mahipal, Resident of Village Chulkana and some other respectable persons that agreement to sell was already cancelled and wrong facts mentioned in the legal notice sent by the defendant and false complaint filed in the police then in that panchayat defendant apologies his mistake and promised the plaintiff that he will withdraw the said legal notice. After the assurance of the defendant, the plaintiff has not filed any criminal or civil litigation against the plaintiff for the cancellation of the alleged agreement dated 23.03.2023.

12- That the defendant is very sharp and cunning person and wants to grab the valuable land of the plaintiff by lodging the false FIR No.83 dated 05.02.2025, U/s 406/420 IPC which is filed after the delay of the one year of alleged agreement to sell dated 23.03.2023 in which date fixed between

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the parties for the execution of sale deed is 24.05.2023, but defendant very sharply and very falsely taking the benefit of the innocence of plaintiff mentioned the date as 24.04.2024, which is already cancelled.

13- That the defendant is very clever and cunning person and defendant is a very big financer as he filed 10 cases in the Sub-Division Samalkha for the cheque bounces and suit for recovery. The business of the defendant is to take the benefit of the innocence person and then filed the false cases against the innocent person and grabbed the amount and land from the innocent person.

14- That no other litigation is pending between the parties to the suit in any other court of law in India regarding the suit land and same cause of action.

15- That the cause of action arose in favour of the plaintiff against the defendant on 20.03.2025 when police official reached the house of the defendant for arrest of the plaintiff and plaintiff was not

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available at his house at that time then plaintiff enquired the matter and came to know that the defendant in collusion with the abovesaid persons Satish & Pawan lodge false FIR against the plaintiff. The cause of action is still continuing one.

16- That the suit land is situated at village Patti Kalyana, Tehsil Samalkha, Distt. Panipat, which falls within the jurisdiction of the Hon'ble Court, hence the Hon'ble Court has got jurisdiction to try entertain and decide the present suit.

17- That the value of the suit for the purposes of court fee and jurisdiction is Rs.200/- and court fee of Rs.50/- has been affixed with the plaint.

It is, therefore, prayed that a decree for declaration to effect that the agreement to sell dated 23.03.2023 alleged to be executed by plaintiff in favour of the defendant is illegal, null, void, against law and facts and without any rights an act of fraud, forgery, misrepresentation committed by the defendant upon the plaintiff in collusion with the witness and the same is not

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binding on the rights of the plaintiff and is liable to be declared as cancelled with PERMANENT INJUNCTION restraining the defendant forever from interfering in the peaceful possession of the plaintiff over the land measuring 696 Sq.yds which is in Khewat No.2313, Khasra No.175//2/1(1-3), situated at G.T. Road, Sant Nirankari Mandal, village Patti Kalyana, Tehsil Samalkha, Distt. Panipat, may kindly be passed in favour of the plaintiff and against the defendant, in the interest of justice, equity and fairplay.

Any other relief to which the plaintiff is found entitled according to the satisfaction of the Ld.Court be also awarded to the plaintiff.

VERIFICATION:

Verified that the contents of above paras No.1 to 14 of the plaint are true and correct to the best of our knowledge and belief and para No.15 to 17 of the plaint are legal as per advice of the counsel and nothing has been concealed therein.

Verified at Panipat
On:25.03.2025

__Plaintiff

Ravinder Kumar (age 55 years) Son of Sh.Ram Kumar Son of Sh.Mukhtiar Singh, Resident of Village Garhi Tyagian, Tehsil Samalkha, Distt. Panipat.

Through Counsel

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ADVOCATE

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Annexure-7

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In the Court of Dr. Naresh Kumar Singhal (Unique ID Code no. HR/0111), Additional Sessions Judge, Panipat.

CIS No.BA-671-2025.
CNR No.HRPP01-003137-2025.
Bail application No.140-2025.
Date of Institution: 26.3.2025.
Date of Decision: 28.3.2025.

Ravinder (aged 55 years) son of Sh. Ram Kumar, resident of village Garhi Tayagian, Tehsil Samalkha, District Panipat, UID no.2300 6129 4791.

...Applicant/accused.

Versus

State of Haryana.

...Respondent.

FIR No.83 dated 5.2.2025.
Under Sections: 406, 420 IPC.
Police Station: Samalkha, Panipat.

Application under section 482 BNSS for the grant of anticipatory bail.

Present: Sh. Ravi Dhull, Advocate for the applicant-accused.
Sh. Sunil Dahiya, Public Prosecutor for the respondent-State assisted by Sh. Sajjan Pal Ruhal, Advocate for the complainant.

ORDER:

This order shall dispose of the above captioned bail application filed by applicant-accused **Ravinder** for seeking the concession of **anticipatory bail** in the above said case by invoking the provisions of section 482 BNSS.

2. The brief facts of the present case are that the present case was registered on the complaint of complainant Lok Raj Bansal son of Banarasi

(Dr. Naresh Kumar Singhal)
ASJ, Panipat, 28.3.2025.

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Dass, who mentioned in his complaint that he is resident of Old Police Station Road, Samalkha and is a law abiding citizen. He alleged that **Ravinder** son of Ram Kumar is owner of land measuring 1K-3M comprising in Khewat no.20317, Khatoni no.20417, Khasra no.175, Killa no.2/1 and wants to sell the said land. The complainant ready for purchasing the said land and gave Rs.7 lacs to the accused, in which Rs.6 lacs by way of cheque no.000134 of HDFC Bank, Branch Samalkha and Rs.1 lac in cash on 23.3.2023 in the presence of the witnesses. The rate of said land was Rs.3,000/- per sq. yard. When the complainant asked the accused for the registry of the said land then accused linger on the matter and thereafter on 30.11.2024, the complainant sent a legal notice through his counsel for the performance of execution of the sale deed in favour of the complainant. Thereafter, the complainant came to know that the accused persons after the agreement to sell with the complainant made a further agreement to sell with Satish son of Arjun Singh son of Himmat Singh and Pawan son of Umed son of Sawroop, resident of village Malakpur, Tehsil Rai, District Sonipat. When the complainant asked the accused regarding the second agreement to sell then the accused threatened the complainant that he will kill him and also stated the complainant that he deceived the complainant and received Rs.7 lacs and also told the complainant that do whatever he wants to do and the accused will sell the abovesaid land in near future to someone else. The accused is very cuning

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type of person by this he grabbed Rs.7 lacs and also stated to the complainant that the complainant will not do anything with the accused, because he has very good relation with the police and moreover accused threatened the complainant that the accused will falsely implicate the complainant in arrest in false case by this accused deceived the complainant and disrespect the complainant and grabbed Rs.7 lacs by doing conspiracy with the complainant. It was requested that legal action be taken against the accused persons. On this complaint, formal FIR bearing no.83 under sections 406, 420 of IPC was registered in Police Station Samalkha, Panipat on 5.2.2025. The Investigating Agency swung into action and investigation was carried out by ASI Ajay, Police Post Haldana. After that the investigation was carried out by ASI Jasbir Singh, Police Post Haldana. On 14.2.2025, the statement of account of Ravinder son of Ram Kumar, resident of Garhi Taigan, District Panipat from the bank Manager has been obtained and same was taken by the police in their possession vide recovery memo. The Jamabandi has also been obtained from Halqa Patwari. The statement of stamp vendor Balbir Singh son of Rati Ram, resident of Tajpur, District Panipat has been got recorded. The stamp vendor has disclosed that he has sold the stamp paper of Rs.2,000/- in the name of Ravinder, resident of Garhi Gaigan, Tehsil Samalkha, Panipat on which the agreement in the name of Satish Kumar son of Arjun Singh has been drafted. The statement of Deed Writer Meghraj Rawal son of Telu Ram, resident of Dadola,

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District Panipat has been got recorded on 23.3.2023. On 18.2.2025, the statements of other witnesses namely Lokraj Bansal, Sohan Lal Bansal sons of Banarasi Dass, resident of Old Police Station Road Samalkha, Panipat, Satish Kumar son of Arjun Singh, resident of Mirakpur, Tehsil Rai, District Sonipat, Pawan Kumar son of Umed Singh, resident of Garh Mirakpur, Tehsil Rai, District Sonipat, Sunil son of Hoshiyar Singh, resident of Mahawati, District Panipat, Pardeep son of Jal Karan Singh, resident of Garhi Chhaju, P.S. Samalkha, District Panipat have been got recorded. They have also got recovered the bank record from HDFC Bank, Samalkha and the same was taken into possession by the police vide recovery memo. The accused has committed the cheating and the currency amount is yet to be got recovered from his possession.

3. Apprehending his arrest, applicant-accused **Ravinder** has approached this court for seeking the concession of anticipatory bail.

4. Notice of the bail application was given to the prosecution. The prosecution has filed its reply/status report, opposing the bail application.

5. Learned counsel for the applicant-accused has argued that the earlier agreement dated 23.3.2023 was executed for the purpose of the security as an amount of Rs.19,000/- has been paid by the accused to the complainant and he has also returned the amount of Rs.6 lacs to the complainant also. The applicant-accused is having in his possession videography to prove himself as innocent. When the amount has been paid

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by the applicant-accused to the complainant then the agreement was got cancelled. The present dispute is of civil nature. The complainant has not filed any civil litigation with regard to the present dispute rather he has filed the false complaint against the applicant-accused. The applicant-accused has also filed the civil suit in the learned civil court at Samalkha with regard to present dispute. The second agreement to sell has been got executed by the applicant-accused in favour of some other person after cancellation of the first agreement. The complainant has sent the notice after expiry of the period of seven months of the first agreement which is contradictory with the contents of the complainant. The present FIR is also not maintainable. The complainant has filed ten civil cases in the learned civil court at Samalkha. One case is pending against the applicant-accused and the proceedings of that case is stayed by Hon'ble Punjab & Haryana High Court. So, the custodial interrogation of the applicant-accused is not required in the present case. The accused shall abide by all the terms and conditions so imposed by the court and thus, prayed that the applicant-accused **Ravinder** may kindly be granted anticipatory bail.

6. On the other hand, it has been argued by the learned Public Prosecutor for the respondent-State that the applicant-accused has executed the agreement to sell with the complainant on 23.3.2023 @ Rs.3,000/- per sq. yards for the area of land 1K-3M situated at Samalkha and the complainant has paid an amount of Rs.7 lacs to the applicant-accused. The

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applicant-accused has executed the second agreement to sell with Pawan and Satish, residents of Mirakpur, Tehsil Rai, District Sonipat for an amount of Rs.30 lacs on 2.6.2023. Neither the accused has returned the amount to the complainant nor the applicant-accused has executed and registered the sale deed in pursuance of agreement in favour of complainant on 23.3.2023. The applicant-accused is a habitual criminal as the accused is facing similar type of case bearing FIR no.370/2021 under sections 406, 420, 467, 468, 471, 506, 379, 120-B IPC registered in Police Station Samalkha. The FIR is very much maintainable as the offence has been got committed in the year 2023. The recovery of the amount is yet to be effected from the possession of the applicant-accused. So, if the applicant-accused is released on anticipatory bail then he may interfere in the investigation. So, the custodial interrogation of the applicant-accused is required in the present case, thus, prayed that considering the seriousness and gravity of offence, the applicant-accused Ravinder does not deserve the concession of extra ordinary relief of anticipatory bail and as such the bail application of the applicant-accused **Ravinder** may kindly be dismissed.

Learned counsel for the complainant has argued that the applicant-accused has cheated the complainant on the very first day i.e. on the date of agreement i.e. on 23.3.2023 and the accused has received an amount of Rs.7 lacs from the complainant. No agreement to sell has been got cancelled with the consent of the complainant and the cancelled

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agreement is not on the file. No amount has been returned by the accused to the complainant. The accused has executed the second agreement with other person and they have received an amount of Rs.30 lacs from the other person also. The accused has cheated the complainant as he was not in possession of the land which was sold to the complainant by the dint of the agreement dated 23.3.2023. The recovery of the amount is yet to be effected from the possession of the applicant-accused and prayed that the anticipatory bail application of applicant-accused Ravinder may kindly be dismissed.

7. I have heard learned counsel for the applicant-accused as well as learned Public Prosecutor for the respondent-State assisted by learned counsel for the complainant and have gone through the record very carefully.

8. In the present case, there is allegations against the applicant-accused that he alongwith co-accused has executed the agreement to sell dated 23.3.2023 for selling the land 1K-3M @ Rs.3,000/- per sq. yards. Neither the accused has cancelled the first agreement to sell with the consent of the complainant nor the accused has returned the amount to the complainant nor the accused has executed the sale deed in favour of complainant in pursuance of agreement to sell dated 23.3.2023

rather the accused has executed another agreement to sell with other person namely Satish son of Arjun and Pawan son of Umed Singh, resident of

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Mirakpur, Tehsil Rai, District Sonipat for an amount of Rs.30 lacs. During the course of arguments, it emerges that the agreement to sell has not been denied by either of the parties. There is no document on the file which goes to show this fact that the accused has cancelled the first agreement to sell with the consent of the complainant and the accused has returned the amount of Rs.7 lacs to the complainant. The specific role has been attributed to the applicant-accused in committing the offence. Such type of offences are increasing day by day. Such type of accused should be dealt with iron hands. So, the custodial interrogation of the applicant-accused seems to be required for the purpose of further investigation and in this scenario, considering the attending circumstances of the case; seriousness as well as gravity of offence; as also the settled principle of law that power of grant of anticipatory bail under section 438 Cr.P.C./482 BNSS is to be sparingly exercised in extra ordinary circumstances and thus, there being no such circumstances having been made out in this case, this Court does not find it a proper case for granting the relief of anticipatory bail to the applicant-accused. Therefore, without commenting on the merits of the case, lest it may prejudice the case of either of the parties, the bail application of the applicant-accused **Ravinder** is hereby **dismissed**. After due compliance, file be consigned to records.

Announced in open Court:
28.3.2025.
(SPKamboj)
Stenographer Gr-I.

(Dr. Naresh Kumar Singhal)
Additional Sessions Judge,
Panipat, UID No.HR0111.

(Dr. Naresh Kumar Singhal)
ASJ, Panipat, 28.3.2025.

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Annexure P-1 (62)

HARYANA POLICE CITIZEN SERVICES (हरियाणा पुलिस नागरिक सेवा)

FIRST INFORMATION REPORT
(Under Section 154 Cr.P.C.)

प्रथम सूचना रिपोर्ट

(धारा 154 दंड प्रक्रिया सहिंता के तहत)

1. **District (ज़िला):** PANIPAT **P.S. (थाना):** SAMALKHA **Year (वर्ष):** 2025

FIR No. (प्र.सू.रि. सं.): 0083 **Date (दिनांक):** 05/02/2025 23:26

2.

S.No. (क्र.सं.)	Acts (अधिनियम)	Sections (धारा(एँ))
1	IPC 1860	406
2	IPC 1860	420

3. (a) **Occurrence of offence (अपराध की घटना):**

1 **Day (दिन):** Intervening Days **Date from (दिनांक से):** 23/03/2023 **Date To (दिनांक तक):** 30/06/2024

Time Period (समय अवधि): **Time From (समय से):** 00:00 hrs **Time To (समय तक):** 00:00 hrs

(b) **Information received at P.S. (थाना जहां सूचना प्राप्त हुई):** **Date (दिनांक):** 05/02/2025 **Time (समय):** 22:52 hrs

(c) **General Diary Reference (रोजनामचा संदर्भ):** **Entry No. (प्रविष्टि सं.):** 046 **Time (समय):** 05/02/2025 22:52 hrs

4. **Type of Information (सूचना का प्रकार):** Written

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FIRST INFORMATION REPORT
(Under Section 154 Cr.P.C.)
प्रथम सूचना रिपोर्ट
(धारा 154 दंड प्रक्रिया सहिंता के तहत)

5. Place of Occurrence (घटनास्थल):

1. **(a) Direction and distance from P.S. (थाना से दूरी और दिशा):** SOUTH, 5 Km(s) **Beat No. (बीट सं.):** 30

(b) Address (पता): गांव पट्टीकल्याणा,

(c) In case, outside the limit of this Police Station, then Name of P.S. (यदि थाना सीमा के बाहर है तो थाना का नाम):

District (State) (जिला (राज्य)):

6. Complainant / Informant (शिकायतकर्ता / सूचनाकर्ता):

(a) Name (नाम): लोक राज बंसल

(b) Guardian's Name (अभिभावकका नाम): बनारसी दास

(c) Date/Year of Birth (जन्म तिथि / वर्ष): 1976 **(d) Nationality (राष्ट्रीयता):** INDIA

(e) UID No. (यूआईडी सं.):

(f) Passport No. (पासपोर्ट सं.):

Date of Issue (जारी करने की तिथि): Place of Issue (जारी करने का स्थान):

(g) Occupation (व्यवसाय):

(h) Address (पता):

S.No. (क्र.सं.)	Address Type (पता का प्रकार)	Address (पता)
1	Present Address	पुराना थाना रोड समालखा, SAMALKHA, PANIPAT, HARYANA, INDIA

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HARYANA POLICE CITIZEN SERVICES (हरियाणा पुलिस नागरिक सेवा)

FIRST INFORMATION REPORT
(Under Section 154 Cr.P.C.)
प्रथम सूचना रिपोर्ट
(धारा 154 दंड प्रक्रिया संहिता के तहत)

2	Permanent Address	पुराना थाना रोड समालखा, SAMALKHA, PANIPAT, HARYANA, INDIA

(i) **Phone number (दूरभाष सं.):** **Mobile (मोबाइल सं.):**

7. **Details of known / suspected / unknown accused with full particulars (ज्ञात / संदिग्ध / अज्ञात अभियुक्त का पूरे विवरण सहित वर्णन):**

S. No. (क्र.सं.)	Name (नाम)	Alias (उपनाम)	Relative's Name (रिश्तेदार का नाम)
1	रविन्द्र कुमार		Father's Name: रामकुमार

8. **Reasons for delay in reporting by the complainant / informant (शिकायतकर्ता / सूचनाकर्ता द्वारा रिपोर्ट देरी से दर्ज कराने के कारण):**

बाद जांच रिपोर्ट अफसरान बाला

9. **Particulars of properties of interest (संबन्धित सम्पत्ति का विवरण):**

S. No. (क्र.सं.)	Property Type (सम्पत्ति के प्रकार)	Sub Type (उप प्रकार)	Value(In Rs/-) (मूल्य (रु में))

10. **Total value of property stolen (In Rs/-) (चोरी हुई सम्पत्ति का कुल मूल्य(रु में)):**

11. **Inquest Report / U.D. case No., if any (मृत्यु समीक्षा रिपोर्ट / यू.डी.प्रकरण सं., यदि कोई हो):**

S. No. (क्र.सं.)	UIDB Number (यू.डी.प्रकरण सं.)

12. **First Information contents (प्रथम सूचना तथ्य):**

नकल दरखास्त नम्बरी- 06 दस्ती दि0 02.01.25 जैल है- सेवा में श्रीमान एस0एच0ओ0 साहब,

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समालखा । विषय- दरखास्त बाबत किए जाने कानूनी कार्यवाही बरखिलाफ 1- रविन्द्र कुमार पुत्र रामकुमार पुत्र श्री मुखत्यार सिंह निवासी गांव गढ़ी त्यागान तहसील समालखा जिला पानीपत। श्रीमान जी. प्रार्थी प्रार्थना करता है कि प्रार्थी समालखा का स्थाई निवासी है और कानून में विश्वास रखता है। 1. यह कि उपरोक्त दोषीगण ने प्रार्थी को बताया कि भूमि खेवट न0-20317 खतौनी न०-20417 खसरा न०-175 किला न0-2/1 में से 1 कनाल 3 मरले का मालिक व काबिज है और अपनी उक्त भूमि को बेचना चाहता है, जिसको प्रार्थी लेने के लिए तैयार हो गया और प्रार्थी ने 7 लाख रूप्ये जिसमें से 6 लाख रूप्ये चैक न0-000134 एचडीएफसी बैंक शाखा समालखा द्वारा व 1 लाख रूप्ये नगद दिनांक-23.03.2023 को रूबरू गवाहन प्रार्थी से उपरोक्त दोषी ने प्राप्त कर लिए थे और उपरोक्त भूमि का सौदा 3 हजार रूप्ये प्रति वर्ग गज के हिसाब से तय हुआ था। 2. यह कि प्रार्थी उपरोक्त दोषीगण से रजिस्टरी कराने बारे बात करता रहा तो उपरोक्त दोषीगण टाल-मटौल करते रहे और प्रार्थी ने उपरोक्त दोषीगण दिनांक 30.11.2024 को अपने अधिवक्ता के द्वारा एक लीगल नोटिस प्रार्थी के हक में रजिस्टरी कराने बाबत दिया, जिसके बाद प्रार्थी को पता चला कि उपरोक्त दोषीगणों ने प्रार्थी के साथ ईकरार नामा करने के बाद भी एक अन्य ईकरारनामा सतीश कुमार पुत्र श्री अर्जुन सिंह पुत्र श्री हिम्मत सिंह व पवन कुमार पुत्र श्री उमेद सिंह पुत्र श्री रामस्वरूप निवासीगण मिलकपुर तहसील राई जिला सोनीपत के साथ तहरीर करवाया हुआ है। जब प्रार्थी ने उक्त इकरार नामा बाबत आरोपी से बात की तो, आरोपी तैश में आ गया और प्रार्थी को जान से मारने की धमकी देने लगा और कहने लगा कि तेरे साथ ठगी करके व धोखा धड़ी से 7 लाख रूप्ये ठग लिए है और तेरे से जो होता हो वो कर लिये और मैं उक्त रकबा को कहीं और बेच दूंगा। 3. यह कि उपरोक्त दोषीगण सातीर किस्म का व्यक्ति है जिसने मेरे से धोखा करके 7 लाख रूप्ये ठग लिए और ऐलानिया कहता है कि तू मेरा कुछ नहीं बिगाड़ सकता, मेरी पुलिस में अच्छी खासी बनती है औ मैं तुम्हें किसी झूठे मुकदमें में अन्दर करवा दूंगा या झूठा मुकदमा लगवा दूंगा। 4. यह कि उपरोक्त दोषीगण ने मेरे साथ धोखा धड़ी करके मेरी अमानत में ख्यानत कर दी है जो मेरे 7 लाख रूप्ये ठग लिए है और यह सब एक सोची समझी साजिस के तहत किया है। अतः जनाब महोदय से प्रार्थना है कि उपरोक्त दोषीगण के खिलाफ के मुकदमा करके प्रार्थी के पैसे वापिस दिलवाए जावे। जनाब की अति कृपा होगी। दिनांक-02.01.2025 नोटः-एग्रीमेंट टू सैल दिनांक-23.03.2023 व 02.06.2023 की कॉपी साथ सलग्न है। SD LOKRAJ BANSAL प्रार्थी लोक राज बंसल पुत्र श्री बनारसी दास निवासी पुराना थाना रोड़ समालखा। मो0 9254495969 अज थाना हस्ब आमद दरखास्त नम्बरी 06-दस्ती दिनांक 02.01.25 व जांच रिपोर्ट से जुर्म जैर धारा 406,420 IPC का

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होना पाया जाने पर मुकदमा न0 83 दिनांक 05.02.2025 धारा 406,420 IPC थाना समालखा पानीपत दर्ज रजि0 किया जाकर F.I.R की कम्पयूटर प्रतिंया तैयार की गई। नकल मिशल पुलिस मय असल दरखास्त आगामी कार्यवाही हेतु ASI अजय 168 चौकी हलदाना के हवाले की जाएगी। बकाया नकुलात F.I.R बजरिया डाक अफसरान बाला की सेवा मे भेजी जा रही है। प्रथम सूचना रिपोर्ट SI बलवान सिंह 539/RR की हाजरी में दर्ज की गई।

13. Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No. 2.
(की गयी कार्यवाही : चूंकि उपरोक्त जानकारी से पता चलता है कि अपराध करने का तरीका मद सं. 2 में उल्लेख धारा के तहत है.):

(1) **Registered the case and took up the investigation (प्रकरण दर्ज किया गया और जांच के लिए लिया गया): or (या)** **Rank (पद):** HC (Head Constable)

(2) **Directed (Name of I.O.) (जांच अधिकारी का नाम):** AJAY

No. (सं.): 168 **to take up the Investigation (को जांच अपने पास में लेने के लिए निर्देश दिया गया) or (या)**

Directed (Mobile No. of I.O.) (जांच अधिकारी का मोबाइल नंबर): 917988135996

(3) **Refused investigation due to (जांच के लिए):** **or (के कारण इंकार किया या)** **District (ज़िला):**

(4) **Transferred to P.S. (थाना):**

on point of jurisdiction (को क्षेत्राधिकार के कारण हस्तांतरित).

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F.I.R. read over to the complainant / informant, admitted to be correctly recorded and a copy given to the complainant /informant, free of cost. (शिकायतकर्ता / सूचनाकर्ता को प्राथमिकी पढ़ कर सुनाई गयी, सही दर्ज हुई माना और एक कॉपी निशुल्क शिकायतकर्ता को दी गयी)

R.O.A.C. (आर.ओ.ए.सी.)

14. Signature / Thumb impression of the complainant / informant (शिकायतकर्ता / सूचनाकर्ता के हस्ताक्षर /अंगूठे का निशान)

Signature of Officer in charge, Police Station (थाना प्रभारी के हस्ताक्षर)

Name (नाम): Deepak

Rank (पद): SI (Sub-Inspector)

No. (सं.): PSI

15. Date and time of dispatch to the court (अदालत में प्रेषण की दिनांक और समय):

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ADVOCATE

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VAKALATNAMA

IN THE HIGH COURT OF PUNJAB & HARYANA AT CHANDIGARH

In re : _____ Case No. CRM-M 18478- of 2025

Ravinder [redacted]] Plaintiff / Defendent / Appellant / Petitioner

VERSUS

State of Haryana] Defendent / Respondent

KNOW ALL to whom these presents shall come that I/We, the undersigned appoint

NAMIT KHURANA

ADVOCATE

Room No. 28, New Bar Complex

PUNJAB & HARYANA HIGH COURT, CHANDIGARH

Office : # 518, Sukhna Enclave, Kaimbwala Road, Behind Rock Garden (Chd.), Kansal

Mob. : 98880-25264, 94162-81027, E-mail : namitkhurana04@gmail.com

to be the Advocate for the ....Petitioner.... in the above-mentioned case to do the following acts, deeds and things or any of them, that is to say :-

1. To act, appear, and plead in the above mentioned case in this Court or any other Court in which the same may be tried or heard in the first instance or in appeal or Letters Patent Appeal or Review or Revision, or Execution or in any other stage of its progress untill its final decision.

2. To present sign and verify Pleadings, Appeals, Letters Patent Appeals , Cross-objections or Petitions for execution, review, revision, withdrawal, compromise, other petition[illegible] [illegible]fidavits, other documents or other documents as shall be deemed necessary or advisable f[illegible] [illegible]ecution of the said case in all its stages.

3. To withdaw or compromise the said case or submit to arbitration a[illegible] [illegible]utes, that shall arise touching, or in any manner relating to the said case.

4. To deposit , draw and receive moneys and grant receipts th[illegible] , refund or balance of security and other miscellaneous expenses from cou[illegible] all other acts and things which may be necessary to be done for the progres[illegible] the prosecution of the said case.

5. To employ any other Legal Practitioner authorise him to exe[illegible] power and authorities hereby confer upon such advocate whenever he may think fit to do so.

And I/We hereby agree to ratify whatever the advocate or his substitutes shall do in the premise and in this connection.

And I/We hereby agree not to hold the Advocate or his substitute responsible for the result of the said case in consequence of his absence from the Court when the said case is called up for hearing.

And I/We hereby agree that in the event of the whole or any part of the fee agreed by me/us to be paid to the Advocate remaining unpaid, he shall be entitled to withdraw from the prosecution of the said cause untill the same is paid and if any costs are allowed for an adjournment, the Advocate would be wntitled to the same.

And I/We hereby agree that the Advocate will not be bound to appear for us if the case is transferred to any other Court or the Court sits at any place other than its normal place of sitting.

IN WITNESS WHERE OF I/WE do hereunto set my/our hands to these presents, the contents of which have been explained to, and understood by, me/us.

This the ....01.... day of ....04.... 20..25

Accepted

NAMIT KHURANA
ADVOCATE
E. No. P/2739/2010
PH-223188

Lalita Kashyap
Adv
PH-5043/22

(Signature or Thumb Impressions)
RAVINDER

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भारत सरकार
GOVERNMENT OF INDIA

रविन्द्र कुमार
Ravinder Kumar
जन्म तिथि/ DOB: 01/01/1970
पुरुष / MALE

2300 6129 4791

मेरा आधार, मेरी पहचान

भारतीय विशिष्ट पहचान प्राधिकरण

पता:
S/O: श्री रामकुमार, गर्ग
त्यागयान, महौली ८९,
पानीपत,
हरियाणा - 132102

Address:
S/O: Shri Ramkumar GARG
TAYAGIAN, Maholi (89), Panipat,
Haryana - 132102

2300 6129 4791

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